

		nothing in the original agreement that requires confidentiality. As the agreement contains a final expression of the parties agreement, it cannot be contradicted by a claim of prior or contemporaneous oral agreement. (<i>Civ. Proc. Code § 1856.</i>) Plaintiff's new allegations that a Tripartite Agreement was created are not supported by the allegations. Plaintiff argues the integration clause does not matter as the Tripartite Agreement was between individuals/entities who were not parties to the purchase agreement; Stoddard, the attorney allegedly representing both sides in the transaction, Plaintiff/Jergensen (purchasers), and Sorensen (seller). However, this argument equates to what would be two breaches of separate contracts; the purchase agreement and the alleged Tripartite Agreement. Additionally, there are no allegations regarding the terms of the Tripartite Agreement, including consideration, the date entered, etc. Further, even if the Tripartite Agreement were to be considered a valid contract, the failure of the Defendants to comply with sole term alleged (keeping the purchase agreement terms confidential) would be nothing more than a breach of contract claim and would not support a breach of the implied covenant of good faith and fair dealing claim. Although Amendment No. 1 does contain a clause that the subject securities would be removed from the market during the existence of the agreement, the allegations that Defendants did not do that again equate to nothing more than a breach of contract claim, which Plaintiff has pled at cause of action number seven, and do not support a separate cause of action for breach of the implied covenant of good faith and fair dealing. Finally, consent from NAHS was required for the purchase to go through. (FAC, Ex. 1.) Plaintiff's managing member Jergensen was employed by NAHS at the time as was Olsen (CEO and board member) who signed off on the Agreement initially. (SAC ¶¶ 13, 21.) NAHS would be deemed to have notice of the terms of the agreement via those relationships at least to some extent. (<i>Civ. Code § 2332; Powell v. Goldsmith</i> (1984) 152 Cal. App. 3d 746, 750.) There are also no allegations that Defendants were able to control the actions of other entities or individuals. Plaintiff has not pled sufficient facts to support this COA. The demurrer is SUSTAINED with one final leave to amend within 15 days of written notice of the ruling. Defendants' request to take judicial notice is DENIED as the requested items are improper items for judicial notice. (<i>TSMC N. Am. v. Semiconductor Mfg. Internat. Corp.</i> (2008) 161 Cal. App. 4th 581, 594 fn. 4.) Plaintiff's objections are moot based on the denial. <i>Defendant to give notice.</i>
5.	Johns v. Children's Hospital of Orange County 25-1497840	Before the Court is a demurrer and motion to strike filed by defendant Children's Hospital of Orange County (Defendant) directed to the first amended complaint (FAC) of plaintiff Anthony Johns (Plaintiff). The demurrer is OVERRULED and the motion to strike is DENIED.

Defendant is to file an answer to the FAC within 20 days.

Motion 1: Demurrer

"In reviewing the sufficiency of a complaint against a general demurrer, we are guided by long-settled rules. 'We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law. [Citation.] We also consider matters which may be judicially noticed.' [Citation.] Further, we give the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (*Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318.)

First Cause of Action for Violation of California Labor Code Section 1102.5: *Labor Code section 1102.5* prohibits an employer from retaliating against an employee for sharing information the employee "has reasonable cause to believe ... discloses a violation of state or federal statute" or of "a local, state, or federal rule or regulation" with a government agency, with a person with authority over the employee, or with another employee who has authority to investigate or correct the violation. (*Labor Code*, § 1102.5(b).)

Defendant contends Plaintiff's first cause of action fails because he never alleges the person who terminated him had any knowledge of his alleged complaint about not being compensated properly. The FAC alleges Plaintiff reported his complaint to his supervisor Gerald Curry and that the decision to terminate his employment was carried out by Mr. Curry. (See FAC ¶¶ 8-9, 14.) Defendant's argument thus fails.

Defendant also contends Plaintiff does not sufficiently allege that he engaged in protected activity by complaining about the failure to compensate him for hours worked remotely because the allegations in the FAC establish that he was not permitted to work remotely but was required to work at the hospital. Thus, according to Defendant, Plaintiff cannot claim a reasonable belief that the information disclosed a legal violation. This argument lacks merit. The FAC does not allege that Plaintiff was prohibited from working remotely. The FAC alleges "Plaintiff would also routinely perform work remotely" and "Plaintiff had no issue getting this time approved because he was required to perform this work." (FAC ¶ 8.) The FAC also alleges "Plaintiff's supervisor—Director of Laboratory Services Gerald Curry—insisted that he report time for all hours he performed work, even if the work was performed outside of the hospital, during non-work hours." (*Ibid.*) These allegations are sufficient to establish Plaintiff's reasonable belief that Defendant's failure to pay for hours worked remotely constituted a legal violation.

Defendant also contends there is no allegation Plaintiff held that belief at the time he made the complaint to his supervisor, nor that he expressed as much when he made the complaint. This argument fails. (See FAC ¶ 9.)

The demurrer to the first cause of action is **OVERRULED**.

Second Cause of Action for Violation of California Labor Code Section 98.6: Defendant's demurrer to the second cause of action is based on the same arguments as its demurrer to the first cause of action. Defendant's demurrer to the second cause of action fails for the same reasons discussed above.

The demurrer to the second cause of action is **OVERRULED**.

Motion 2: Motion to Strike

Defendant moves to strike the claim for punitive damages from the FAC. The FAC pleads that Defendant unlawfully retaliated against Plaintiff for reporting Defendant's unlawful failure to pay wages by wrongfully terminating him and that Defendant attempted to conceal its motives for terminating Plaintiff by fabricating a false allegation that Plaintiff had failed to properly maintain timekeeping records. (FAC ¶¶ 11, 13.) A reasonable inference can be made that by engaging in such conduct, Defendant acted in a manner that was base, contemptible or vile and, thus, acted with malice. (See, e.g., *Cloud v. Casey* (1999) 76 Cal.App.4th 895, 912; see also, *Civ. Code* § 3294(c).)

In addition, contrary to Defendant's argument, the FAC adequately pleads facts showing that an officer, director, or managing agent of Defendant knew or ratified the alleged wrongful conduct. (See FAC ¶¶ 13-14.)

Based on the foregoing, the motion to strike is **DENIED**.

Counsel for Plaintiff shall give notice.

6. Pepper v. Lorkowski
25-1452672

Before the Court are the Demurrer and Motion to Strike filed on 3/25/26 by Defendants Huntington Seaport Condominium Association and Action Property Management (here, as moving parties, "MPs"), directed to the First Amended Complaint ("FAC") filed on 7/3/25 by Plaintiff Patricia E. Pepper ("Plaintiff").

The Demurrer

The Demurrer, which is directed to the Third, Fourth, Sixth and Seventh Causes of Action (each a "COA"), is **SUSTAINED**, with 15 days leave to amend.

The causes of action being contested are:

3. Negligent Hiring
4. Breach of Contract
6. Nuisance
7. Violation of B&P Code Sec. 17200 et seq.

For COA 3, the FAC fails to state the factual basis for asserting this claim against MPs. The vague allegations in ¶¶ 33-36 fail to identify who the alleged employer and employees or contractors were, what MPs allegedly knew or should have known about any employees or